

M/s Shiv Ganga Aata Mill v. Srikant Pandey, Executive Engineer

Allahabad High Court · Single Judge · 8 January 2016 · Contempt Application (Civil) No. 50 of 2016 · Contempt Application (Civil) No. 50 of 2016 · **Contempt disposed; two more weeks to decide Clause 6.5 objections**

HEADNOTE

On a civil contempt application alleging non-compliance with a writ direction that Purvanchal Vidyut Vitran Nigam Ltd. decide the mill's Clause 6.5 billing objections within seven days, the High Court did not punish contempt. It granted the Executive Engineer two further weeks from production of a certified copy to comply, and disposed of the application with liberty to move afresh if the objections remained undecided.

FACTUAL SUMMARY

M/s Shiv Ganga Aata Mill disputed electricity bills of Purvanchal Vidyut Vitran Nigam Ltd. and filed objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005. On 2 December 2015 in Writ-C No. 65378 of 2015 the High Court, recording the licensee's statement that the objections would be decided, directed the Power Corporation to endeavour to decide them within seven days. The mill then filed this civil contempt application, alleging that a certified copy sent by registered post on 10 December 2015 had not been complied with.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of direction to decide Clause 6.5 billing objections

HOLDING

Where a prior writ had directed the licensee to decide the consumer's Clause 6.5 objections to electricity bills within the stipulated seven days, the contempt court, without recording wilful disobedience, afforded the opposite parties one further opportunity to comply within two weeks of production of a certified copy of the contempt order, and disposed of the application at that stage with liberty to the applicant to move a fresh application if the writ direction was still not complied with. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 BILLING OBJECTIONS

The Court only extended time for the licensee to decide them. ¶ 4-5

NOT DECIDED — WHETHER THE OPPOSITE PARTIES HAD WILFULLY DISOBEYED THE WRIT ORDER DATED 2.12.2015

¶ 4-5